

Delaware County Stormwater Board Meeting July 6th, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=Z485PiMGf9M
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Target Category	delaware_county

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Delaware County Storm Water Board Meeting Summary

Meeting Date: July 6th

Call to Order Time: 00:06:39

1. Pre-Meeting Hearings & Committee Work Sessions

(None noted in the transcript; the report proceeds directly to the regular meeting session.)

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called to order the July 6th board meeting for the Delaware County Storm Water Board at 11:32 AM.
- **Attendance:**
 - **Members Present:** Mr. Borchers, Commissioner Henry, Commissioner Bran, Commissioner Reagan.
 - **Members Absent:** None noted.
 - **Presiding Officer:** Not explicitly named by title, but leading the proceedings.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by the presiding officer.
 - **Approval of Minutes:**
 - **March 11th Minutes (Combined Drainage & Storm Water Board):** Approved by voice vote, with one abstention due to absence.
 - **April 6th Minutes (Storm Water Board):** Approved unanimously by voice vote as presented.
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4. Substantive Business & Board Action

- **00:08:38 Old Business: Stony Creek Drive**
 - **Sponsor / Presenter:** Mr. Borchers
 - **Deliberation Summary:** DNR permits were previously approved. The project faced delays due to weather and contractor backlog, but one quote has been secured that is slightly under the approved not-to-exceed limit.
 - **Action & Vote Disposition:** Approved by Voice Vote to move forward with the current contractor quote.
- **00:10:20 Old Business: Orchard Street and Hickory Lane**
 - **Sponsor / Presenter:** Tommy / Dean
 - **Deliberation Summary:** Work on the west side of Orchard Street was completed a month ago. While a property owner has raised flooding concerns along Hickory Lane, recent observations show less severity than previous events. Staff is pursuing a quote for additional work on Hickory Lane.
 - **Action & Vote Disposition:** Orchard Street work considered complete (removed from list); Hickory Lane left under old business pending an additional quote.
- **00:12:10 Old Business: K Drive Easement**
 - **Sponsor / Presenter:** Tommy and Dean
 - **Deliberation Summary:** Staff plans to stake pipe locations this week, followed by surveying by Ashton and legal descriptions provided to legal counsel to secure temporary extra-wide easements and narrow maintenance easements.
 - **Action & Vote Disposition:** Left under old business for ongoing progress.
- **00:13:06 Old Business: Crypto Mining Compliance in Park One**
 - **Sponsor / Presenter:** Miss Pruitt
 - **Deliberation Summary:** J Crew was hired and has reinstalled protection at the outfall and seeded the area. Rusty steel storage containers have been cleared or moved inside. Mowing status was noted as mowed during the last visit.
 - **Action & Vote Disposition:** Status update received; no formal board action required.
- **00:14:50 Old Business: Foundry Road**
 - **Sponsor / Presenter:** Miss Pruitt

- **Deliberation Summary:** Fines of \$2,500/day were issued on May 1st with a May 18th deadline. Corrections were completed by May 21st, resulting in 2 days of accumulated fines totaling \$5,000, which are routed to the stormwater/legal account. Recent inspections show minor trash accumulation that is being cleaned up by a site laborer, and clogged lines have been cleared.
 - **Action & Vote Disposition:** Status update received; noted as moving in the right direction.
- **00:16:55 Old Business: Log Jam on White River and County Road 900 West (Daleville)**
 - **Sponsor / Presenter:** Flatland Resources / Staff
 - **Deliberation Summary:** Flatland Resources is actively communicating with the DNR regarding permit comments. The board noted frustration with a 6-month wait time on permits, which impacts local canoe launch plans.
 - **Action & Vote Disposition:** Left on the agenda under old business.
- **00:18:00 Old Business: County Road 700 West Drainage Damage Matter**
 - **Sponsor / Presenter:** Tom / Engineering & Highway Departments
 - **Deliberation Summary:** Property owners and neighbors submitted plans acceptable to engineering and highway departments. The plan involves the property owner paying to remove concrete and install a rip-rap swale. Legal counsel is involved.
 - **Action & Vote Disposition:** Expected to be completed by the next meeting.
- **00:19:10 Old Business: 408 Sandpiper Court**
 - **Sponsor / Presenter:** Board / Staff
 - **Deliberation Summary:** Presiding officer and staff briefly attempted to locate details for this item.
 - **Action & Vote Disposition:** Skipped / deferred to a later date.
- **00:20:05 Substantive Item: Diodeto Drainage Issues and Replacement**
 - **Sponsor / Presenter:** Dean
 - **Deliberation Summary:** Following multiple complaints—including a child falling into a drainage pipe—staff obtained a map and requested quotes via RFP. Two quotes for 350 feet of pipe work along Wood Street were received: JJC Excavating (\$20,940) and East Central Contractors (\$42,661). Staff recommended JJC Excavating. The stormwater fund cash balance stands at \$74,552.35, with \$10,000 previously earmarked for temporary fixes, leaving a net additional requirement of \$10,940 for the permanent solution.
 - **Action & Vote Disposition:** Approved by Voice Vote to award the contract to JJC Excavating for \$20,940.
- **00:24:28 New Business: Review of Draft RFP for Storm Water Rate Study**
 - **Sponsor / Presenter:** Dean / Mr. Carroll
 - **Deliberation Summary:** Review of the draft RFP to update stormwater utility rates (last established via 2006 ordinance). Legal counsel (Mr. Carroll) highlighted a new

state statute effective July 1 that limits fee adjustments: any fee changes must be enacted by December 31, 2026, or remain fixed for 5 years. Counsel recommended conducting a cost-allocation study to legally justify county costs. The board agreed to submit comments on the draft RFP within a week, targeting an RFP issuance date of July 20th.

- **Action & Vote Disposition:** Draft RFP introduced for board review and feedback.
- **00:27:26 New Business: Proposed Amendment to Ordinance 2024-01 (Ordinance 2026-01)**
 - **Sponsor / Presenter:** Engineering / Courtney
 - **Deliberation Summary:** Introduction of an amendment to the Delaware County stormwater management ordinance. Engineering requested language allowing the county to fine contractors on municipal projects (where the county is the owner) and to pass design review fees directly onto permit applicants/developers rather than absorbing them at county expense.
 - **Action & Vote Disposition:** Approved by Voice Vote to introduce Ordinance 2026-01.
- **00:29:28 Old Business: Cowan / Kulie Construction Work**
 - **Sponsor / Presenter:** Staff
 - **Deliberation Summary:** Update regarding town hall meeting feedback. All proposed construction work is complete; remaining tasks are retelescoping, cleaning, and televising. Staff scheduled the contractor to perform inspection and cleaning.
 - **Action & Vote Disposition:** Update received; action scheduled.
- **00:37:00 Old Business / Correction: County Road 100 North and 700 East (Misabeled as Abe McConnell)**
 - **Sponsor / Presenter:** Dean / Tommy / Surveyor
 - **Deliberation Summary:** Clarification that the previous discussion regarding "Abe McConnell" actually pertained to a tributary to Hog Creek at 100 North and 700 East. A reconstruction alternative came in at \$1.6 million, placing a heavy cost burden on prominent landowners based on acreage. A public hearing is scheduled for Wednesday to let landowners decide between options (including a potential side ditch along South County Road and West County Road 400 South).
 - **Action & Vote Disposition:** Awaiting landowner decision following Wednesday's hearing.
- **00:39:09 Old Business: Albany Area Drainage Issue (Intersection of 650 East and 500 North)**
 - **Sponsor / Presenter:** Mr. Carroll / Tommy / Staff
 - **Deliberation Summary:** Addressed standing water (8-12 inches deep lasting 3-4 weeks) at the southwest quadrant of 650 East and 500 North. Discussion centered on high ditch elevations relative to the water table, field runoff (cornstalk debris

clogging ditches), and historical tile installations. Staff will review elevations and historical records.

- **Action & Vote Disposition:** Left on the agenda under old business for further staff review.
 - **00:43:43 Board Governance: Joint Meetings with Drainage Board**
 - **Sponsor / Presenter:** Board Members
 - **Deliberation Summary:** Discussed whether to hold regular quarterly joint meetings with the drainage board. Given overlapping membership, the board concluded that quarterly meetings are unnecessary, opting instead for an “as-needed” basis when major overlapping projects arise.
 - **Action & Vote Disposition:** Consensus to hold joint meetings strictly on an as-needed basis.
 - **00:48:37 Financial Business: Approval of Claims**
 - **Sponsor / Presenter:** Staff
 - **Deliberation Summary:** Presentation of claims accrued from April 9th through the upcoming Thursday, totaling \$41,129.27 (which includes two log jam removal claims of \$18,970.85 and \$6,720.70). The board also requested that the Treasurer’s office provide an updated distribution report matching last year’s format.
 - **Action & Vote Disposition:** Approved by Voice Vote in the amount of \$41,129.27.
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5. Open Public Comment / Citizen Forum

- *(No general public comments were recorded during the open public comment period near the conclusion of the meeting.)*
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6. Administrative Updates & Adjournment

- **MS4 Program Updates (Courtney):**
 - Two MS4 audits scheduled: Construction/Post-Construction audit on August 25th; Education, Illicit Discharge Detection & Elimination (IDDE), and Good Housekeeping audit on November 18th.
 - Planning a Kids Fund Run for August 29th (waiting on MSD legal counsel for liability waivers).
 - Courtney speaking on a panel at the LTAP stormwater drainage conference.
 - Bureau of Water Quality releasing ~50 endangered/sensitive kidney-shell mussels this week.
 - Noted minor maintenance/overgrowth issues at the Dollar General basin on Route 67; owner and contractors have been notified.
- **Adjournment:**
 - Motion to adjourn made and seconded.

- **Disposition:** Approved by Voice Vote [00:50:47](#).

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